Precedent memo: Corvid Software v. Ahmed

Oregon Court of Appeals, decided 2024-04-17 - memo by the employment group

1. Holding

A non-compete signed at a promotion, not at hire, was unenforceable unless it was entered into upon a bona fide advancement and the employee received notice two weeks before the promotion took effect.

2. Facts

Ahmed was promoted to engineering manager on 2022-06-01 and handed the agreement the same morning.

3. Firm position

We represented Ahmed. Promotion agreements need the same two-week notice.

4. Practice notes

Keep the dated documents from the first client call. The dates usually decide these cases.